



Newsletter

ATSUMI & SAKAI
www.aplawjapan.com

June 2024
No.LKA_001

Legal Framework in Sri Lanka

In light of growing interest from foreign investors in investing in Sri Lanka, understanding the intricacies of the country's legal system is paramount. With its rich cultural heritage and diverse historical influences, Sri Lanka presents a unique legal framework that requires nuanced comprehension.

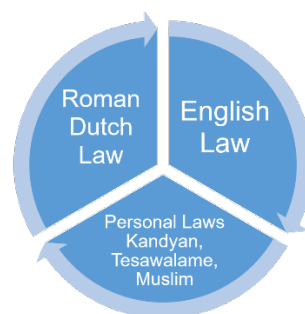
This newsletter aims to demystify this complex legal landscape by providing a basic overview of key legal structures and terminologies rooted in Sri Lankan laws and traditions. Focusing on fundamental aspects such as constitutional foundations, court structures, and the integration of international law, we seek to equip readers with essential insights into navigating the legal intricacies of this vibrant island nation.

Introduction

Sri Lanka, an island nation renowned as the "Pearl of the Indian Ocean," has long captivated the world with its breathtaking beauty, strategic location, and rich natural resources. Beyond its stunning landscapes, Sri Lanka boasts a legal framework steeped in history and diversity, shaped by centuries of cultural influences and colonial legacies. From the ancient civilizations of the Sinhalese, Tamils, and Muslims to the periods of Portuguese, Dutch, and British rule, the country's legal system reflects a mosaic of traditions and customs.

1. Legal System of Sri Lanka

Sri Lanka is a multicultural, multi-religious, and multi-ethnic country, influenced by ancient civilizations such as the Sinhalese, Tamils, and Muslims, as well as periods of colonization by the Portuguese (1505-1658), Dutch (1658-1796) and British (1796-1948). This rich heritage has significantly shaped the modern Sri Lankan legal system.



1.1 Roman-Dutch Law

Even after the end of the Dutch colonial rule, the Roman-Dutch Law (RDL) holds a unique position in the legal framework of Sri Lanka, serving as the residuary law of the country (Common Law, General Law). During British colonial times, RDL was applied in situations where no relevant statutes existed, or when special laws were inapplicable or silent. In the absence of applicable legal principles, courts would turn to RDL, unless the parties were governed by other systems of law. Over time, judicial decisions have influenced and modified RDL principles, sometimes incorporating English legal principles or local customs and practices. While Dutch law once played a significant role across various legal domains in Sri Lanka, particularly in procedure, evidence, criminal law, constitutional law, and mercantile law, its

application has been greatly diminished, now restricted primarily to certain areas of private law. In the case of The Costa V Bank of Ceylon Justice Weeramanthry stated “.....The Roman-Dutch Law was thus firmly enthroned as the Common Law of this Country subject to such deviation as might be legislatively ordained”¹

1.2 English Law

In the realm of legal tradition, Sri Lanka stands as a testament to the enduring influence of the Common Law system that originated in England. Despite the country's historical ties to the Roman-Dutch tradition, the impact of English law has been far more pronounced. From its very foundation, Sri Lanka's legal structure, including its constitution, was modelled on English legal principles, a legacy that persists even after gaining independence. This influence extends beyond mere legislative enactments, seeping into the core of judicial practices. Modelled largely on the English pattern, Sri Lanka's judicial system embraces doctrines such as judicial precedent and establishing a robust framework of binding case law. Legal procedures, particularly in civil and criminal cases, bear the hallmark of English law, exemplified in codes influenced by Indian, English, and American legal traditions. Perhaps most strikingly, Sri Lanka's commercial law mirrors English commercial principles, shaping contracts, sales, and other transactions. In sum, the profound and enduring influence of English law has left an indelible mark on Sri Lanka's legal system and culture, forging a unique legal landscape that bridges historical legacies with contemporary realities.

1.3 Personal Law

The Sri Lankan legal system is a testament to the country's diverse historical heritage, deeply intertwined with its indigenous roots and the influx of various ethnic groups over millennia. The Vedda people, the island's indigenous inhabitants, have preserved their distinct culture despite centuries of change. Sinhalese are descended from an Indo-Aryan group from northern India who settled on Ceylon about 500 B.C². The Tamil presence, originating from South India, further enriched the island's tapestry through ancient migrations and dynastic connections. Notably, Sri Lankan kings' marriages to Indian women underscored the blending of cultures, adding yet another layer to the country's rich history. During the colonial era, Tamil laborers arrived under Dutch and British rule, significantly impacting the demographics, particularly in the central highlands. Additionally, Muslim migration, dating back to the 7th century AD³ contributed to the coastal communities through vibrant trade networks. This diverse fusion of cultures has given rise to a vibrant mosaic of traditions and personal laws that continue to shape Sri Lanka's legal landscape today.

1.3.1 Kandyan Law

The Kandyan law, deeply entrenched in the cultural heritage of the Kandyan kingdom⁴, stands as a testament to Sri Lanka's rich historical tapestry. Its significance reverberates through the annals of time, shaping the legal landscape of the island nation. With the signing of the Kandyan Convention in 1815, British colonial ambitions marked a pivotal moment in Sri Lankan history. This event not only paved the way for British control over the Kandyan kingdom but also signaled the onset of broader colonial dominance across the island. In the aftermath of the convention, British influence extended across the entirety of Sri Lanka, leaving an indelible mark on its governance, culture, and society. In the case of Mongee v Siyar Paya⁵, the British recognized Kandyan Law as a territorial law, primarily applying to the inhabitants of the upcountry region. However, due to historical migrations and settlements, disputes arose over whether newcomers to the upcountry, including those from the lowlands, should be governed by Kandyan Law or the General Law (residuary Law/Common Law/RDL). In the case of William v Robertson⁶, it was established that individuals migrating from the lowlands and settling in the upcountry were not subject to Kandyan Law. This ruling clarified the jurisdictional boundaries between the two legal systems. Presently, the Kandyan Marriage and Divorce Act governs marriages within the Kandyan

¹ Commercial Laws of Sri Lanka Applicability of Laws of England, Uditha Egalahewa President's Counsel, page 19

² George C. Cameron, Sri Lankas Legal System, Michigan University, Page2

³ https://en.wikipedia.org/wiki/Islam_in_Sri_Lanka#:~:text=With%20the%20arrival%20of%20Arab,having%20them%20converted%20to%20Islam.

⁴ The Kandyan Kingdom, nestled in Sri Lanka's central highlands, atop formidable mountain, water, and forest barriers, remained unconquered by foreign powers until 1815.

⁵ Mongee v Siyar Paya, Board Minutes, July 7, 1820

⁶ William V Robertson (1886) 8 SCC 36

community in Sri Lanka. This legislation upholds the unique customs and traditions associated with Kandyan marriages, ensuring the preservation of cultural heritage within the legal framework of the country.

1.3.2 Thesawalamai Law

The Thesawalamai Law, a customary legal system unique to Sri Lanka, holds significant historical and cultural importance, particularly within the region of Jaffna⁷. Originally applied to the "Malabar Inhabitants of the province of Jaffna", its reach expanded over time. In a landmark case, Tharmalingam Chetty v Arunasalam Chettiar⁸, it was established that this law pertains to Tamils with a Ceylon domicile and Jaffna residency, further solidifying its application within the community. Originating centuries ago, the Thesawalamai Law was an integral part of the social fabric of Northern Ceylon. Its formal codification took place in 1706 under Dutch rule, later receiving validation from the British colonial administration. This recognition cemented its status as a legal framework governing various aspects of life in the region. In contemporary Sri Lanka, the application of Thesawalamai Law is regulated by the Matrimonial Rights and Inheritance Ordinance of 1911. Under this ordinance, customary marriages, as dictated by Thesawalamai Law, are duly recognized. However, it's important to note that other requirements of marriage, such as consent and prohibited degrees of marriage, are governed by the general laws of the country.

1.3.3 Muslim Law

The Muslim community in Sri Lanka constitutes a relatively small percentage of the population, comprising approximately 10% of the total. Within this demographic, Sri Lankan Muslims can be broadly categorized into two groups: the Moors and the Malays. The Moor community traces its origins to Arab traders, while the Malays have roots in Java and Malaysia. Marriages within the Sri Lankan Muslim community are governed by the Muslim Marriage and Divorce Act of 1951. This legislation specifically addresses the legal aspects of marriage and divorce for Muslims residing in Sri Lanka. However, it's worth noting that this act often clashes with the general law and criminal statutes of the country. While the Muslim Marriage and Divorce Act serves as a legal framework for the Muslim population in Sri Lanka, its application has led to numerous challenges within Sri Lankan society.

In contemporary Sri Lanka, the legal landscape embodies a fusion of diverse legal frameworks mentioned earlier. Below, we present a concise chart illustrating this harmonization within the Sri Lankan legal system.

English Law	Roman-Dutch Law (RDL)	Eng:/RDL	Customary Laws (Kandyan, Tesawalame & Muslim)
Evidence Ordinance	Succession	Contracts	Marriage
Trust Ordinance	Property	Torts	Divorce
Penal code	Contracts	Succession	Succession
Wills Ordinance	Torts		Property
Prevention of Fraud Or:			
The Code of Criminal Procedure Act			
Commercial Law			

In the present Roman-Dutch Law remains the general law or the common law of the country. But the common law principles derived from English law have much greater dominance than Roman-Dutch Law. In the case of Kodeeswaran vs. the Attorney General⁹ Lord Diplock stated that common law of the island has been subject of progressive development by a *cursus curiae* (long line of judicial decision).

1.4 Constitution:

Since gaining independence from British colonial rule on February 4th, 1948, Sri Lanka has undergone constitutional evolution, culminating in the codification of two landmark constitutions in 1972 and 1978. Presently, the 1978 Constitution, with numerous amendments, serves as the supreme law of the country.

⁷ Jaffna, located in the northern part of Sri Lanka.

⁸ Tharmalingam Chetty V Arunasalam Chettiar (1944) 45 NLR 321

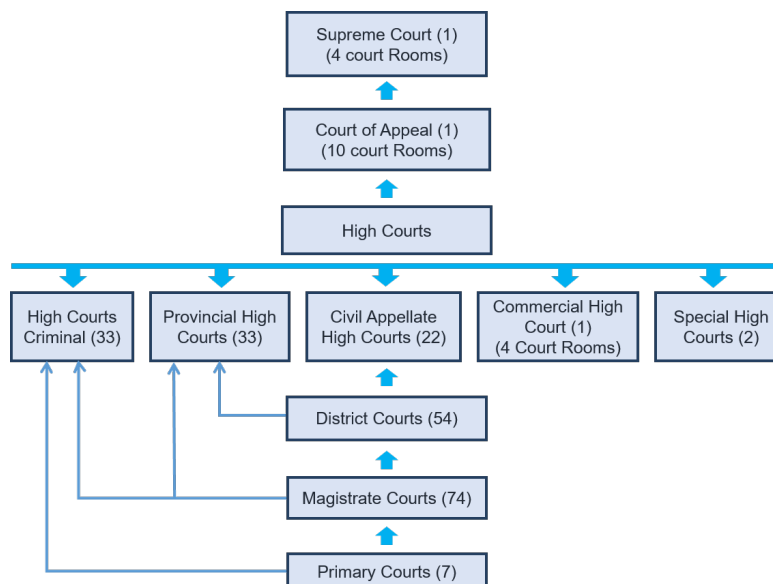
⁹ Kodeeswaran v The Attorney General 72NLR 337,342(PC)

Enshrined within it is the principle that Sri Lanka is a sovereign nation, with Section 3 of the constitution explicitly declaring the sovereignty of the people. This sovereignty is divided into executive, judicial, and legislative branches of power. Notably, the Constitution acknowledges the importance of an independent judiciary, safeguarding judicial power and appointments under various sections. This constitutional framework plays a vital role in shaping Sri Lanka's legal landscape, ensuring the protection of fundamental rights and the functioning of democratic institutions.

2. Court Hierarchy

Sri Lanka's judiciary has evolved through distinct historical periods. Originating in the monarchical era, the king held supreme judicial authority, overseeing an unwritten legal system. Under Portuguese rule, the ancient Sinhala judicial system persisted, with local officials exercising judicial powers. The Dutch further organized the judiciary into districts during their tenure. During British colonial rule, Roman-Dutch Law was retained as the prevailing legal system of the country, and the Privy Council of England was introduced as the ultimate appellate authority. Constitutional reforms in 1972 marked a significant shift, abolishing appeals to the Privy Council. Subsequent reforms in 1973 established the Supreme Court as the apex court, under the Judicature Act¹⁰ and the Constitution of 1978¹¹, reshaping Sri Lanka's present judicial system. Sri Lanka's legal system is structured hierarchically, featuring multiple layers of courts such as the Supreme Court, Court of Appeal, High Courts, District Courts, Magistrate Courts, and Primary Courts.

Below is a simplified diagram outlining the structure of the Sri Lankan court system.



2.1.1 Supreme Court

The Supreme Court, as per the Constitution of Sri Lanka, holds the utmost authority as the ultimate superior court in the nation. It possesses conclusive appellate jurisdiction over both civil and criminal appeals originating from the Court of Appeal or any Court of First Instance. Article 118 of the Sri Lankan Constitution reads as follows

“The Supreme Court of the Republic of Sri Lanka shall be the highest and final superior Court of record in the Republic”

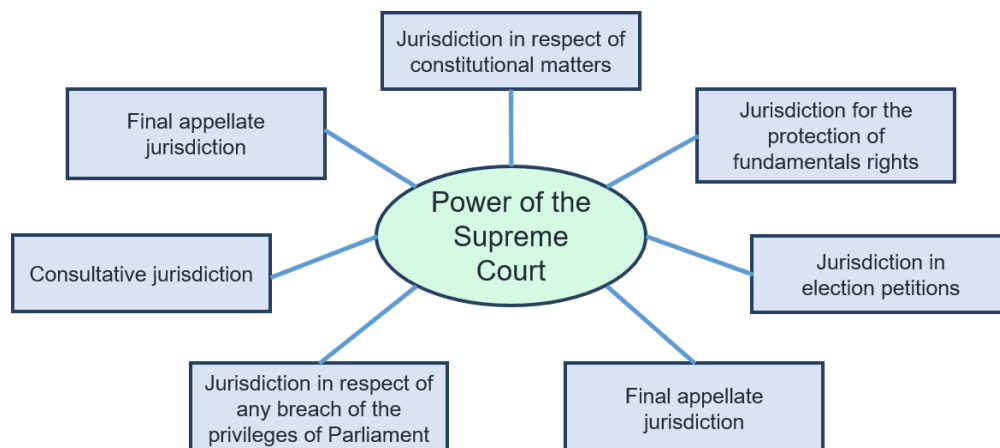
¹⁰ Judicature Act No.2 of 1978

¹¹ The Constitution of the Democratic Socialist Republic of Sri Lanka 1978



The Supreme Court, under the leadership of the Chief Justice and comprising a minimum of six and a maximum of ten additional judges¹², stands as the paramount authority in the nation, serving as the ultimate appellate court. Further Article 118 of the Sri Lankan Constitution serves as a guiding light for the powers vested in the Supreme Court. It delineates the scope of authority and responsibilities entrusted to the court as :

- a) Jurisdiction in constitutional matters: Interpretation of the Constitution and to determine whether any bills are inconsistent with the Constitution.¹³
- b) Jurisdiction for the protection of fundamental rights: It acts as a guardian, protecting citizens' liberties against executive overreach
- c) Final appellate jurisdiction: Serving as the ultimate authority, it resolves legal disputes, ensuring consistency and fairness in legal decisions.
- d) Consultative jurisdiction: The President seeks its counsel on matters of public interest, benefiting from its legal enlightenment.
- e) Jurisdiction in election petitions: Ensuring the integrity of the democratic process, it safeguards against electoral malfeasance.
- f) Jurisdiction in respect of any breach of the privileges of Parliament: It upholds parliamentary decorum, ensuring justice prevails within the legislative realm.
- g) In essence, the Supreme Court of Sri Lanka stands as a bastion of justice, safeguarding constitutional principles, fundamental rights, and democratic governance



2.1.2 Court of Appeal

The Court of Appeal of Sri Lanka occupies a pivotal role as the second most senior court within the nation's legal system, a status conferred upon it by the Court of Appeal Act No. 44 of 1971. Established under this legislation, its authority extends to the adjudication of appeals originating from both the High Court and any court serving as a court of first instance. According to the provisions laid out in Article 137 of the Constitution, the composition of the court necessitates the presence of the President of the Court alongside a panel comprising no fewer than six and no more than eleven additional judges. This judicial entity stands as an indispensable cornerstone of the legal framework, offering a platform for the review and resolution of appeals, thus making substantial contributions to the administration of justice throughout Sri Lanka.

¹² Article 119 of the Sri Lanka Constitution as amended by 31st October 2022.

¹³ https://jsc.gov.lk/web/index.php?option=com_content&view=article&id=51&Itemid=64%E2%9F%A8=en#The%20Supreme%20Court

The Court of Appeal holds various powers within its jurisdiction, being:

- a) **Appellate Jurisdiction:** It possesses the authority to hear appeals from courts of first instance and other judicial bodies.
- b) **Correction Jurisdiction:** The court has the power to rectify any errors, whether factual or legal, that arise in cases.
- c) **Examination of Case Records:** It can request and review case records from courts of first instance to ensure proper examination.
- d) **Contempt of Court:** The court has the authority to punish contempt of court, with imprisonment of up to eight years being a possible penalty
- e) **Writs Issuance:** The court is empowered to issue writs such as *certiorari*¹⁴, *procedendo*¹⁵, *mandamus*¹⁶, and *quo warranto*¹⁷, which serve to ensure the legality and fairness of proceedings in lower courts.

2.1.3 High Court in Sri Lanka

The High Courts in Sri Lanka are vital pillars of the nation's judicial system, established and regulated by a combination of constitutional provisions, legislative enactments, common law principles, and international agreements. Article 154P of the Constitution outlines the establishment, jurisdiction, powers, and functions of these courts, while statutes like the Judicature Act provide further guidance. With jurisdiction over both civil and criminal matters, Sri Lanka's High Courts wield significant authority, hearing cases ranging from serious criminal offenses to complex civil disputes and constitutional matters. Their decisions hold substantial weight, as they have the power to issue orders, judgments, and rulings that are binding and enforceable within their respective jurisdictions. As such, the High Court plays a crucial role in administering justice and upholding the rule of law throughout Sri Lanka.

a) Civil Appellate High Court

The High Court of Civil Appeal has been established to expedite the civil appeals from District Courts.

b) The Provincial High Court

The Provincial High Courts were instituted through the 13th Amendment of the 1978 constitution, with judges appointed by the Chief Justice. This initiative aims to decentralize the authority of the Court of Appeal to the provincial level, offering citizens the chance to lodge their appeals at the provincial level. The provincial High Courts have been granted the authority to review and revise decisions and verdicts made by Magistrate Courts, primary courts, labor tribunals, and Agrarian Services Commissioners Tribunals within the province.

c) Special High Court

In 2018, Special High Courts were established in Sri Lanka with a specific focus: expediting cases related to large-scale corruption and financial crimes. These courts, including the permanent High Court-at-Bar, are dedicated to hearing cases involving offenses such as money laundering, bribery, financial fraud, dishonest misappropriation of property, and criminal breach of trust by public servants.

¹⁴ *Certiorari* allows the Court of Appeal in Sri Lanka to review lower court decisions, ensuring they stay within their jurisdiction. If legal errors or procedural irregularities are found, the court can overturn the decision.

¹⁵ *Procedendo*: This writ is issued by the Court of Appeal to direct a lower court to proceed with a case. It commands the lower court to proceed to judgment. This writ compels a lower court, tribunal, or administrative body to perform a specific duty that it's legally obligated to do. It orders them to take specific actions or make decisions in accordance with the law and proceed according to law if it has delayed or neglected to do so.

¹⁶ *Mandamus*: This writ compels a lower court, tribunal, or administrative body to perform a specific duty that it's legally obligated to do. It orders them to take specific actions or make decisions in accordance with the law.

¹⁷ *Quo warranto*: This allows the court to question the right or legality of holding a public office or position. If there are suspicions regarding the unlawful occupancy of a public position, this legal mechanism empowers the Court of Appeal to investigate and request evidence regarding the authority under which the individual holds that position. If satisfactory evidence cannot be provided, the individual may face removal from the position in question.

d) The Commercial High Court

The Commercial High Court holds the authority to adjudicate cases concerning commercial transactions valued at over 20 million rupees¹⁸. Additionally, it possesses jurisdiction over matters falling within the purview of the Intellectual Property Act.

2.1.4 The District Court

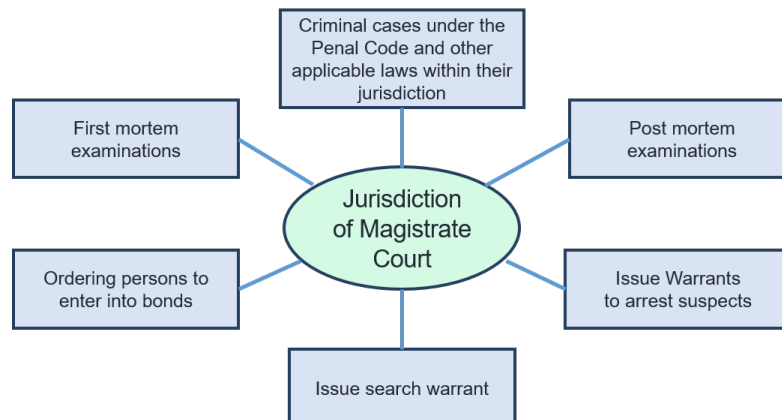
In Sri Lanka, there are District Courts in all 54 districts. These courts handle various civil matters specific to each district. The Commission of the Judicial Service is responsible for appointing and removing judges for these courts.

District Courts in Sri Lanka handle a diverse range of cases, including divorce proceedings, testamentary matters (pertaining to estates of individuals who passed away without a will), guardianship of individuals with mental incapacities, cases involving minors' guardianship and legality, adoption petitions, name change requests, income-related disputes, trust and bankruptcy cases, financial disputes, partition cases, land disputes, rental disputes, accident compensation claims, insurance cases, and cases under the Company Act.

2.1.5 The Magistrate Court

Under the Judicature Act, No. 2 of 1978, Magistrate's Courts are set up in each of 74 judicial divisions in Sri Lanka, each endowed with primary criminal jurisdiction. These courts typically have the authority to impose sentences, including fines of up to Rs. 1,500 and/or imprisonment for a maximum of two years. The appointment of all Magistrates falls under the purview of the Judicial Service Commission. Appeals stemming from decisions made by Magistrate's Courts within a province are directed to the High Court of that respective province for further review and consideration.

Under section 30 of the Judicature Act, Magistrate Courts are empowered to perform the provisions outlined in the Penal Code, Criminal Procedure Code, and any other enactments for the time being force¹⁹.



2.1.6 The Primary Court

The Judicature Act outlines the role of Primary Courts in adjudicating cases where the debt, damage, demand, or claim does not surpass Rs.1500. Presently, there are seven Primary Courts in operation across Sri Lanka. These courts possess both criminal and civil jurisdiction, enabling them to handle a variety of legal matters within their prescribed limits.

¹⁸ Gazette Extraordinary No. 2170/09 dated December 15, 2023.

¹⁹ Section 30 of the Judicature Act:

"Every Magistrate's Court shall have and exercise all powers and authorities and perform all duties which Magistrates' Courts are empowered and required to have, exercise and perform by virtue of the provisions of the Penal Code or of the law relating to criminal procedure or of any other enactment for the time being in force in any way empowering or requiring them in that behalf. For the purposes of this section "law relating to criminal procedure " shall mean the Code of Criminal Procedure Act."

2.2 Litigation in Sri Lanka

In Sri Lanka, the legal landscape is structured around two primary types of litigation: civil law practice and criminal law practice. Each category serves distinct purposes within the judicial system, addressing different legal issues and employing specific procedures.



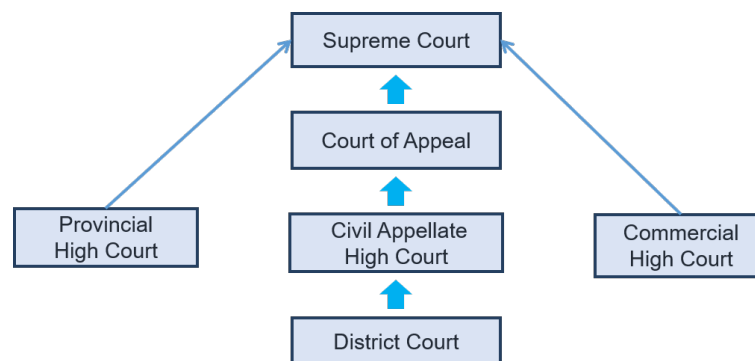
2.3 The Structure and Process of Civil Litigation in Sri Lanka

Civil litigation in Sri Lanka operates within a well-established legal framework governed primarily by the Civil Procedure Code. This code delineates the procedures for filing and prosecuting civil cases, encompassing jurisdiction, pleadings, discovery, evidence, and appeals. The court system for civil cases is hierarchical, comprising the District Court, the High Court, the Court of Appeal, and the Supreme Court.

Beginning with the filing of a plaint, parties navigate through pre-trial procedures, which may include document exchange, evidence discovery, and witness examination. Alternative dispute resolution mechanisms, such as mediation, offer avenues for settlement outside of court.

In the trial phase, both parties present evidence and arguments before a judge who renders a judgment based on legal principles and the merits of the case. Dissatisfied parties have the right to appeal to higher courts for review.

Overall, civil litigation in Sri Lanka provides a structured and transparent process for resolving disputes, ensuring access to justice and equitable remedies for all parties involved.



2.4 Criminal Litigation in Sri Lanka

The legal framework governing criminal proceedings is based on key legislative enactments such as the Penal Code, the Criminal Procedure Code, and the Evidence Ordinance. These laws cover a wide range of offenses, ensuring that individuals accused of crimes, from minor infractions to serious offenses like theft and homicide, are prosecuted fairly.

Criminal procedure in Sri Lanka is simple: detecting the offenders and bringing them before the courts, conducting a fair trial, convicting the offender and imposing an appropriate degree of punishment on the offender, rehabilitating and reintegrating the offender into society, and controlling and prevent further crimes²⁰.

The process begins with the initiation of criminal proceedings, typically through a complaint filed with the relevant judicial authority. The Magistrate's Court and the High Court are the two main criminal prosecution courts in Sri Lanka²¹. Criminal prosecution involves a collaborative effort among law

²⁰ A critical analysis on the application of the legal principle of rule of law in the criminal justice system of Sri Lanka, Prof. Muthukuda Niriella, University of Colombo

²¹ THE ROLE AND FUNCTION OF PROSECUTION IN SRI LANKA, D.P. Kumarasingha, page 1, Section 136 of the Code of Criminal Procedure Act

enforcement agencies, primarily the police, and the Attorney General's Department. The police are tasked with investigating crimes and collecting evidence, while the Attorney General's Department handles the prosecution of criminal cases on behalf of the state. Finally, the courts, including the Magistrate's Court, the High Court, and the Supreme Court, oversee the trial process, adjudicate cases, and deliver judgments based on the evidence presented and the law. The prosecution presents evidence and arguments to establish guilt, while the accused is entitled to a fair trial conducted according to established legal procedures. During the trial, both sides present their cases, and the judge evaluates the evidence before delivering a verdict based on the law and facts presented.

As a nation historically influenced by British colonial rule, Sri Lanka has adopted an Anglo-American plea system. This system is governed by Section 197 of the Criminal Procedure Act (No. 15 of 1979), which outlines the following:

“If the accused pleads guilty and it appears to the satisfaction of the Judge that he rightly comprehends the effect of his plea, the plea shall be recorded on the indictment and he may be convicted thereon.”

As a country following the adversarial system the process ensures that both the prosecution and defence have the opportunity to present their arguments fully and challenge each other's evidence and assertions. This process helps safeguard the rights of the accused and ensures a fair trial.

In the event of an unfavourable verdict, the accused has the right to appeal to higher courts, such as the Court of Appeal or the Supreme Court, for a review of the judgment. This appellate process ensures that any legal errors or miscarriages of justice are addressed, maintaining fairness and due process.

2.5 Language of the Country, Laws and Courts

Chapter IV of the Sri Lankan constitution outlines the provisions regarding the use of languages in the country. According to Article 18, Sinhala and Tamil are designated as the Official Languages of Sri Lanka, with English serving as the link language, as stated in Article 18(3). Additionally, Article 19 specifies that Sinhala and Tamil are recognized as the National Languages of the nation.

2.5.1 Language of legislation

Article 23 mandates that laws and regulations in Sri Lanka must be enacted, published, and made available in Sinhala and Tamil; translations of these laws into English are also required to ensure accessibility and comprehension for all citizens.

2.5.2 Language of the Courts

Sinhala and Tamil shall be the languages of the Courts throughout Sri Lanka and Sinhala shall be used as the language of the courts situated in all the areas of Sri Lanka except those in any area where Tamil is the language of administration. The record and proceedings shall be in the language of the Court²².

In a recent development, in March 2024, the Justice Minister sanctioned English as the official language for all litigation in the Commercial High Court, covering commercial, company, admiralty, and arbitration matters, in accordance with Article 24(4) of the Constitution. This decision enhances accessibility and efficacy in legal proceedings, aligning Sri Lanka with international standards and streamlining operations in commercial and arbitration cases.

2.6 Independence of Judiciary

In any modern society, the judiciary plays a critical role in upholding the pillars of justice, fairness, and the rule of law. Its independence and impartiality are fundamental to fostering trust and confidence among citizens in the legal system. In Sri Lanka, the Constitution of 1978 stands as a testament to the nation's commitment to safeguarding the independence of the judiciary, ensuring that it operates autonomously and with integrity.

²² Article 24 (1) of the SL Constitution

Appointment Process:

The appointment process for judges, from the Supreme Court to lower courts, is meticulously structured to ensure fairness and impartiality. Supreme Court and Court of Appeal judges are appointed with the President's approval upon recommendation from the Constitutional Council. High Court judges are chosen based on recommendations from the Judicial Service Commission (JSC), while other court judges undergo a similar evaluation process through JSC recommendations.

Financial Independence:

Financial autonomy is a cornerstone of judicial independence in Sri Lanka. Judges' salaries are drawn from a consolidated fund, shielding them from direct budgetary control.

Ethical Standards:

Upholding ethical standards is paramount in maintaining the integrity of the judiciary. Sri Lanka's Constitution prohibits judges from accepting external positions without Presidential consent. This ensures that judges maintain their singular focus and independence in fulfilling their judicial duties, free from external influences.

Impartiality Protection:

Protecting the judiciary from undue influence is crucial for preserving its impartiality. Influencing judicial matters is considered a punishable offense, shielding judges from external pressures and allowing them to make decisions autonomously. This protection safeguards the judiciary's impartiality and autonomy in its decision-making processes.

Judicial Oversight:

Judicial oversight is essential for ensuring accountability and transparency within the judiciary. The Judicial Service Commission, led by the Chief Justice and appointed by the President, oversees the appointment, promotion, and disciplinary processes. With commission members serving five-year terms, appointed to reinforce accountability and independence, judicial oversight remains robust in Sri Lanka.

Removal of Judges:

In Sri Lanka, according to the Constitution, Supreme Court and Court of Appeal judges can only be removed for "proved misbehaviour or incapacity" (Art 107(2)), while High Court judges can be removed or disciplined by the President upon recommendation from the Judicial Service Commission (Art 111(2)(b)). The JSC oversees the appointment, promotion, and disciplinary matters of all judicial officers, including lower court judges.

2.7 Administrative Tribunals

In addition to the traditional court hierarchy, Sri Lanka has established various administrative tribunals to handle specific types of disputes and regulatory matters. These quasi-judicial bodies include the Labour Tribunal, Tax Appeal Commission, Agricultural Tribunals, Court Martials, and Rent Board, among others. The decisions rendered by these tribunals are generally accepted as binding, but they are subject to revision by the Appellate Courts through writs or appeals. Each tribunal operates under specific enactments that govern its jurisdiction and procedures. This dual system of judicial and quasi-judicial²³ mechanisms ensures that a wide range of legal disputes and administrative matters can be effectively addressed, providing citizens with alternative avenues for resolving their grievances outside of the traditional court system.

3. Alternative Dispute Resolutions (ADR)

Alternative Dispute Resolution (ADR) methods play a crucial role in the Sri Lankan legal landscape, offering parties flexible and efficient means to resolve disputes outside the traditional court system.

3.1 Mediation

The Mediation Boards Act, No. 72 of 1988 in Sri Lanka established Mediation Boards to resolve civil disputes efficiently. These boards handle various matters, including land disputes, contracts, family issues,

²³ Bodies that have some characteristics of a judicial proceeding or decision-making but are not considered fully judicial in nature.

and community conflicts. Upon successful mediation, they issue a "Certificate of Settlement," documenting the agreed-upon terms signed by both parties and the mediator. With 329 boards and over 8,000²⁴ mediators across the country, they offer a swift alternative to litigation, resolving disputes that may have lingered for years and promoting amicable settlements. On 28th February 2024 Sri Lanka was ratified as a member of the Singapore Convention on Mediation²⁵.

3.2 Arbitration

Sri Lanka has established a robust legal framework for arbitration, and has signed and ratified the New York Convention²⁶ without reservations and promulgated the Arbitration Act of 1995. Under this legislation, arbitration proceedings are conducted by arbitrators either chosen by the parties or appointed by arbitral institutions, with their decisions, known as arbitral awards, holding legal validity and enforceability by the courts. Notably, Sri Lanka hosts reputable arbitration centres such as the Sri Lanka National Arbitration Centre (SNNAC) and the Institute of Commercial Law and Practice (ICPL), which contribute to the arbitration landscape. Part VII of the Arbitration Act governs the recognition and enforcement of foreign arbitral awards, outlining procedures for their filing and enforcement in Sri Lanka. The Act confers judicial power exclusively to the High Court of Sri Lanka for matters related to foreign arbitral awards, as reinforced by the landmark case of State Timber Corporation v. Moiz Goh (Pvt) Ltd²⁷. This judicial precedent clarified that Sri Lankan District courts lack jurisdiction over arbitration proceedings, underscoring the authority vested in the High Court as per the Arbitration Act.

3.3 Negotiation

Negotiation is a valuable alternative dispute resolution method in Sri Lanka, fostering direct communication and mutual agreement between parties. Through open discussions, disputing parties can identify their interests, concerns, and potential solutions, allowing for flexible and creative resolutions tailored to their specific needs.

4. Ombudsman & Human Rights Commission

4.1 Ombudsman

The Ombudsman, established under Article 156 of the Constitution, plays a crucial role in safeguarding the fundamental rights and other rights of citizens from potential violations by the executive or administrative bodies. Appointed by the President, the Ombudsman serves to prevent the infringement of fundamental rights and protect citizens from administrative injustices. Since 1994, any citizen has had the right to directly lodge complaints with the Ombudsman, ensuring accessibility and accountability. The current Ombudsman, K.B.K. Hirimburegama, a former Judge of the High Court of Sri Lanka, holds office from April 6, 2023²⁸.

4.2 Human Rights Commission

The Human Rights Commission of Sri Lanka, established under the Human Rights Commission of Sri Lanka Act, No. 21 of 1996, serves as an independent statutory body responsible for upholding and promoting human rights across the country. Comprising 5 members²⁹ appointed by the President, the commission plays a pivotal role in raising awareness about human rights, advising the government on fundamental rights issues, and hearing complaints regarding human rights violations. It also monitors executive and administrative actions to ensure the protection of human rights and provides recommendations for national laws and policies aligning with international human rights standards. Empowered to investigate violations, establish subcommittees, conduct programs, and offer compensation for victims of rights abuses, the commission acts as a crucial safeguard for human rights in Sri Lanka, reinforcing the nation's commitment to international principles of human rights.

²⁴ https://www.moj.gov.lk/index.php?option=com_content&view=article&id=30&Itemid=178&lang=en

²⁵ <https://unis.unvienna.org/unis/en/pressrels/2024/unisl353.html>

²⁶ The Convention on the Recognition and Enforcement of Foreign Arbitral Awards (New York Convention) 1958

²⁷ (2000) 2 Sri L.R. 316(CA)(2002) BALR 44 (SC)

²⁸ <http://www.ombudsman.gov.lk/>

²⁹ Section 3 of the Human rights Commission of Sri Lanka Act No.21 of 1996

5. International Law

Sri Lanka follows a dualist approach to international law, which means that international treaties and agreements ratified by Sri Lanka do not automatically become part of domestic law. Instead, they must be expressly incorporated into domestic law through legislation. The Sri Lankan Constitution does not explicitly mention the dualist approach, but it provides for the process of incorporating international treaties into domestic law.

Article 27 (15) of the Constitution

“The State shall promote international peace, security and co-operation, and the establishment of a just and equitable international economic and social order and shall endeavor to foster respect for international law and treaty obligations in dealings among nations.”

In the landmark case of Nallaratnam Singharasa vs AG³⁰ the Supreme Court of Sri Lanka extensively deliberated on the incorporation of international treaty law into the domestic legal system. The court engaged in a thorough analysis and debate regarding the integration of international treaties ratified by Sri Lanka into the national legal framework. This pivotal legal discourse underscored the significance of aligning international obligations with domestic legislation and emphasized the necessity of judicial interpretation to ensure coherence and consistency between international law and Sri Lanka's legal framework.

6. Legal Education and the Legal Profession

Legal education in Sri Lanka is available at several institutions, where students can pursue degrees in law. These include prominent institutions such as the Law Faculty of Colombo University, Sri Lanka Law College, and the Faculties of Law at the University of Peradeniya and Jaffna. Additionally, numerous private institutions also offer legal education across the country.

The legal profession in Sri Lanka is diverse, comprising attorneys, counsel, President Counsel, judges, and legal advisors, all of whom play crucial roles in administering justice. Attorneys, counsel, and President Counsel represent clients, while judges preside over legal proceedings. Legal advisors provide guidance and expertise on legal matters. Together, these professionals uphold the principles of justice and contribute to the fair application of the law in society.

In conclusion, Sri Lanka's legal system stands as a testament to its rich and diverse heritage, shaped by centuries of historical influences and cultural complexities. From the colonial legacies of Portuguese, Dutch, and British rule to the indigenous legal traditions of the Sinhalese, Tamils, and Muslims, the legal landscape of Sri Lanka is a mosaic of various legal systems and customs. This intricate tapestry is further enriched by the enduring legacy of Roman-Dutch Law and the profound impact of English legal principles. Today, as Sri Lanka embraces its multicultural identity and navigates the complexities of modern governance, its legal framework continues to evolve, guided by constitutional principles, judicial precedents, and international obligations. Through its hierarchical court system, commitment to legal education, and diverse array of legal professionals, Sri Lanka endeavors to uphold the rule of law, safeguard fundamental rights, and promote justice for all its citizens. As the "Pearl of the Indian Ocean" charts its course forward, its legal system remains a cornerstone of stability, ensuring that the principles of fairness, equity, and the rule of law endure amidst the ebb and flow of history.

End.

THIS NEWSLETTER IS PROVIDED FOR INFORMATION PURPOSES ONLY; IT DOES NOT CONSTITUTE AND SHOULD NOT BE RELIED UPON AS LEGAL ADVICE.

³⁰ S.C. SpL (LA) No.182/99,decided on 15.09.2006

Authors/Contacts

Damintha Pathirana

Partner

Registered Foreign Lawyer (The Laws of the
Democratic Socialist Republic of Sri Lanka)

E: damantha.pathirana@aplaws.jp

Hayato Kimura

Partner

E: hayato.kimura@aplaws.jp

Kentaro Minato

Partner

E: kentaro.minto@aplaws.jp

Taro Morinaga

Advisor

E: taro.morinaga@aplaws.jp

If you would like to sign up for A&S Newsletters, please fill out the [sign-up form](#).
Back issues of our newsletters are available [here](#).

Atsumi & Sakai is a multi-award-winning, independent Tokyo law firm with a dynamic and innovative approach to legal practice; it has been responsible for a number of ground-breaking financial deal structures and was the first Japanese law firm to create a foreign law joint venture and to admit foreign lawyers as full partners. Expanding from its highly regarded finance practice, the Firm now acts for a wide range of international and domestic companies, banks, financial institutions and other businesses, offering a comprehensive range of legal expertise.

Atsumi & Sakai has an outward-looking approach to its international practice, and has several foreign lawyers with extensive experience from leading international law firms, providing its clients with the benefit of both Japanese law expertise and real international experience.

We are the only independent Japanese law firm with affiliated offices located in New York, London, Brussels and Frankfurt which, together with our Tokyo office and Fukuoka affiliated office, enables us to provide real-time advice on Japanese law to our clients globally.

Atsumi & Sakai

www.aplawjapan.com/en/

Tokyo Office: Fukoku Seimei Bldg., 2-2-2 Uchisaiwaicho, Chiyoda-ku, Tokyo 100-0011, Japan

Fukuoka Affiliate Office: Tenjin Bldg. 10F, 2-12-1 Tenjin, Chuo-ku, Fukuoka-shi, Fukuoka 810-0001 Japan

New York Affiliate Office: 1120 Avenue of the Americas, 4th Floor, New York, New York 10036

London Office: 85 Gresham Street, London EC2V 7NQ, United Kingdom

Brussels Office: CBR Building, Chaussée de la Hulpe 185, 1170, Brussels, Belgium

Frankfurt Affiliate Office: OpernTurm (13F) Bockenheimer Landstraße 2-4, 60306 Frankfurt am Main, Germany

NOTICES

Atsumi & Sakai is a partnership consisting of Atsumi & Sakai Legal Professional Corporation, a Japanese professional corporation, a foreign law joint venture under the Act on Special Measures Concerning the Handling of Legal Services by Foreign Lawyers with certain Registered Foreign Lawyers of our firm, a Japanese Civil Code partnership among Japanese lawyers, represented by Yutaka Sakai, a lawyer admitted in Japan, and a foreign law joint venture with Janssen Foreign Law Office, represented by Markus Janssen, a foreign lawyer registered in Japan to advise on the laws of the Federal Republic of Germany. In addition to lawyers admitted in Japan, our firm includes foreign lawyers registered in Japan to advise on the laws of the US States of New York and California, the Republic of Korea, India, England and Wales*, and the State of Queensland, Australia. Foreign lawyers registered in Japan to advise on state laws also are qualified to provide advice in Japan on the federal laws of their respective jurisdictions.

Atsumi & Sakai has established an office in London operating as Atsumi & Sakai Europe Limited (a company incorporated in England and Wales (No: 09389892); sole director Naoki Kanehisa, a lawyer admitted in Japan), an office in Brussels operating as Atsumi & Sakai Brussels EU (a company incorporated in Belgium; managing partner: Etsuko Kameoka, a lawyer admitted in New York and a Registered Foreign Lawyer in Brussels**), and an affiliate office in New York operating as Atsumi & Sakai New York LLP (a limited liability partnership established in New York; managing partner Bonnie L. Dixon, a lawyer admitted in New York and a Registered Foreign Lawyer in Japan). We also have a partnership with A&S Fukuoka LPC in Japan (partner: Yasuhiro Usui, a lawyer admitted in Japan) and an affiliate office in Frankfurt operating as Atsumi & Sakai Europa GmbH - Rechtsanwälte und Steuerberater, a corporation registered in Germany providing legal and tax advisory services (local managing director: Frank Becker, a lawyer admitted in the Federal Republic of Germany).

* Atsumi & Sakai is not regulated by the Solicitors Regulation Authority for England and Wales.

**Not Registered as a Foreign Lawyer in Japan

2. LEGAL ADVICE

Japanese legal advice provided by Atsumi & Sakai and our global offices is provided by lawyers admitted in Japan. Advice provided in Tokyo in respect of any foreign law on which one of our foreign lawyers is registered in Japan to advise, may be provided by such a Registered Foreign Lawyer. None of Atsumi & Sakai Legal Professional Corporation, Atsumi & Sakai Europe Limited or Mr. Naoki Kanehisa is regulated by the Solicitors Regulation Authority for England and Wales, and none will undertake any reserved legal activity as defined in the United Kingdom Legal Services Act 2007. Advice provided in Germany on the laws of Germany will be provided by a lawyer admitted in Germany, and advice provided in New York on the laws of New York will be provided by a lawyer admitted in New York.